

24CV04426 Nadia Bernardi vs Terence Alemann et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-28

Motion: Motion: Sanctions

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Tentative Ruling: Nadia Bernardi vs Terence Alemann et al

Case Number

24CV04426

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/28/2026 - 10:00

Nature of Proceedings

Motion: Sanctions

Tentative Ruling

On August 8, 2024, plaintiff Nadia Bernardi filed her original complaint in this action. On January 7, 2025, plaintiff filed her first amended complaint (FAC). The FAC asserts two causes of action: (1) private nuisance; and (2) negligence. The first cause of action is asserted against defendant Terence Alemann; the second cause of action is asserted against Alemann and defendant Daniel Raymond Long dba Rincon Pool Design. On May 5, 2025, Alemann filed his answer to the FAC, generally denying the allegations thereof and asserting 27 affirmative defenses.

On August 28, 2025, Alemann filed three discovery motions: (1) motion to compel responses to request for production, set one; (2) motion to compel responses to form interrogatories, set one, and special interrogatories, set two; and (3) motion to deem matters admitted. No oppositions were filed to these motions. On January 16, 2026, the court granted the two motions to compel further responses and ordered further responses to the requests for production and to the interrogatories to be served by February 6, 2026. On February 5, 2026, plaintiff substituted out her attorney and became self-represented.

On April 20, 2026, Alemann filed this motion for terminating sanctions and for an award of monetary sanctions. In support of this motion, Alemann filed the declaration of Dennis C. Loveridge, which states that no responses have been served in compliance with the court's January 16, 2026, order. (Loveridge decl., ¶ 24.) No opposition to this motion has been filed. On August 21, 2026, Alemann filed and served notice that no opposition had been filed.

Unless plaintiff Nadia Bernardi appears at this hearing and provides a satisfactory explanation for the failure to serve responses as ordered by the court, the motion will be granted for terminating sanctions as to defendant Alemann. In granting terminating sanctions by striking plaintiff's complaint against this defendant, the court will not award monetary sanctions.

Judges

Judge Donna D. Geck

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